

STATE OF NEW YORK

7319--A

2025-2026 Regular Sessions

IN ASSEMBLY

March 25, 2025

Introduced by M. of A. CRUZ, DAVILA -- read once and referred to the Committee on Higher Education -- recommitted to the Committee on Higher Education in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the education law, in relation to establishing an internationally trained physician licensure pathway program

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Legislative intent. The legislature finds that New York
2 state is experiencing a critical shortage of physicians, particularly in
3 primary care and in underserved and rural communities. This shortage
4 limits access to essential healthcare services, exacerbates health
5 disparities, and places an increasing burden on the existing healthcare
6 workforce. At the same time, New York is home to thousands of interna-
7 tionally trained physicians who possess the education, skills, and expe-
8 rience necessary to provide high-quality medical care. However,
9 outdated, and restrictive licensing requirements often prevent these
10 highly qualified professionals from practicing medicine, resulting in
11 significant "brain waste" where capable medical professionals are under-
12 employed or forced to leave the healthcare field altogether. It is the
13 intent of this legislature to address both the physician shortage and
14 the underutilization of internationally trained medical professionals by
15 establishing a streamlined pathway to licensure. This initiative will
16 allow qualified, foreign-trained physicians and physicians trained
17 and/or licensed to practice medicine in a territory or possession of the
18 United States to contribute to the healthcare system through supervised
19 practice in designated shortage areas, ultimately leading to full licen-
20 sure. By enacting this legislation, New York will expand access to
21 healthcare, strengthen the medical workforce, and ensure that skilled

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 medical professionals can fully contribute to the well-being of our
2 communities.

3 § 2. The education law is amended by adding a new section 6525-a to
4 read as follows:

5 § 6525-a. Internationally trained physician licensure pathway program.
6 1. As used in this section, the following terms shall have the following
7 meanings:

8 (a) "Internationally trained physician" shall mean a physician who is
9 licensed to practice medicine in another country or in a territory or
10 possession of the United States meeting standards satisfactory to the
11 state board for medicine and in accordance with the commissioner's regu-
12 lations.

13 (b) "Participating healthcare facility" means federally qualified
14 health centers, community health centers, and hospitals or healthcare
15 facilities located in physician shortage areas, as approved by the state
16 board for medicine.

17 (c) "Territory or possession of the United States" means Puerto Rico,
18 Guam, the United States Virgin Islands, American Samoa, and the Common-
19 wealth of the Northern Mariana Islands, and any other territory or
20 possession subject to the jurisdiction of the United States.

21 2. Permits limited as to eligibility, practice and duration, shall be
22 issued by the department to eligible applicants, as follows:

23 (a) An internationally trained physician shall be eligible for a
24 limited permit pursuant to this subdivision.

25 (b) A permittee shall be authorized to practice medicine only under
26 the supervision of a licensed physician and only in a participating
27 healthcare facility.

28 (c) A limited permit shall be valid for two years, during which the
29 performance of the permittee is mentored, assessed, and evaluated by the
30 supervising licensed physician.

31 3. Upon successful completion of the supervised practice period pursu-
32 ant to paragraph (c) of subdivision two of this section, an interna-
33 tionally trained physician shall be granted by the department a two-year
34 restricted license allowing independent practice in primary care,
35 psychiatry, or other specialties approved by the state board for medi-
36 cine, within physician shortage areas as designated by the state board
37 for medicine.

38 4. Following two years of practice with a restricted license granted
39 pursuant to subdivision three of this section, an internationally
40 trained physician shall be eligible to be licensed pursuant to section
41 sixty-five hundred twenty-four of this article, notwithstanding any
42 provision of law, rule or regulation to the contrary.

43 5. The state board for medicine, in consultation with the department,
44 and the department of health, shall promulgate all rules and regulations
45 necessary for the implementation of this section, which shall at a mini-
46 mum include:

47 (a) program standards for participating healthcare facilities to
48 mentor, assess, and evaluate internationally trained physicians working
49 under limited permits issued pursuant to subdivision two of this
50 section;

51 (b) requirements for participating healthcare facilities to establish
52 full-time employment relationships with the internationally trained
53 physicians working under limited permits issued pursuant to subdivision
54 two of this section;

55 (c) requirements for participating healthcare facilities to submit
56 evidence of an internationally trained physician's eligibility and

1 comprehensive assessments necessary for the department to grant a
2 restricted license pursuant to subdivision three of this section; and
3 (d) regulations and guidance to implement the licensure pathway estab-
4 lished pursuant to this section, ensuring clarity in the application
5 process, supervision requirements, and criteria for progression to full
6 licensure.

7 6. The state board for medicine shall submit a report annually on
8 January fifth to the governor and the legislature on the status of the
9 licensure pathway established pursuant to this section, including but
10 not limited to, the number of internationally trained physicians who are
11 participating in the program established in this section, including,
12 where applicable, the number trained and/or licensed in a territory or
13 possession of the United States, their specialty and the region they are
14 serving.

15 § 3. This act shall take effect on the one hundred eightieth day after
16 it shall have become a law. Effective immediately, the addition, amend-
17 ment and/or repeal of any rule or regulation necessary for the implemen-
18 tation of this act on its effective date are authorized to be made and
19 completed on or before such effective date.